



\$~29

* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

Date of Decision: 21.01.2025

+ **RC.REV. 180/2024, CM APPLs. 37891/2024, 66600/2024**

GURVINDER SINGH & ORS.

.....Petitioners

Through: Mr. Akshay Makhija, Sr. Advocate
with Mr. Davinder N. Grover, Mrs.
Vijay Lakshmi Grover, Mr. Rajiv
Shukla, Mr. Harsh Gupta and Mr. G.
Singh Rekhi, Advocates

versus

ASHA RANI

.....Respondent

Through: Ms. Sonali Malhotra and Ms. Sakshi
Singh, Advocates

CORAM:

HON'BLE MS. JUSTICE TARA VITASTA GANJU

TARA VITASTA GANJU, J.: (Oral)

CM APPL. 66600/2024*[Application for affixation of use and occupation charges]*

1. This is an Application filed on behalf of the Respondent/landlord seeking payment of user and occupation charges from the Petitioners/tenants.

2. Learned Counsel appearing on behalf of the Respondent/landlord submits that the premises in issue are three rooms in property bearing No. 2527/61, Ground Floor, Gali Nalwa, Chunna Mandi, Pahar Ganj, New Delhi-110055 admeasuring 33 sq. yards as shown in red colour in the site plan filed along with the Eviction Petition [hereinafter referred to as "subject premises"].



2.1 Learned Counsel appearing on behalf of the Respondent/landlord further submits that although the subject premises was let out for residential purposes, it is being used by the Petitioners/tenants for commercial purposes it, for the last several years.

2.2 It is further contented by the learned Counsel appearing on behalf of the Respondent/landlord that the area of the subject premises is 33 sq. yards or approximately 297 sq. ft. She seeks to rely upon a registered lease deed dated 11.10.2024 of another premises of an area of approximately 200 sq ft., for which a rental of Rs. 22,000/- per month has been shown. Learned Counsel for the Respondent/landlord, thus, submits that the subject premises being 33 sq. yards/297 sq. ft should be available at the rental of Rs. 35,000/- per month.

2.3 Learned Counsel appearing on behalf of the Respondent/landlord also seeks to rely upon photographs annexed along with the case file to submit that the photographs show that there is a wide road in front of the subject premises and that the subject premises is shop which is open two-sides.

3. Learned Senior Counsel appearing on behalf of the Petitioners/tenants, on the other hand, relies upon a lease deed dated 07.06.2023 which has been executed by the Respondent/landlord for a premises admeasuring 36 sq. yards on the ground floor and 22 sq. yards on the second floor, to submit that for this entire premises, a rental of Rs. 20,000/- is being taken.

3.1 Learned Senior Counsel appearing on behalf of the Petitioners/tenants further seeks to rely upon photographs annexed as Annexure A-2 to submit that the premises admeasuring 36 sq. yards on the ground floor and 22 sq.



2025:DHC:445



yards on the second floor is adjoining the subject premises.

3.2 Learned Senior Counsel further submits that the property admeasuring 75 sq. yards which is in the same vicinity as the subject premises, is let out at the monthly rental of Rs. 30,000/-.

4. There is no dispute that the subject premises is 33 sq. yards or 297 sq. ft. in area. Concededly, the subject premises is located on the ground floor and from the photographs of the subject premises, the property appears to be in a reasonably good condition. It is not denied that the subject premises is being used for the commercial purposes by the Petitioners/tenants. In fact, the photographs of the subject premises itself contains the board of a property dealership. Accordingly, this Court deems it appropriate to fix user and occupation charges in the sum of Rs. 17,5000/- per month for present for the subject premises.

5. Accordingly, without prejudice to the rights and contentions of the parties, the following directions are passed:

(i) The user and occupation charges for the period commencing from 19.08.2024 to 31.12.2024 shall be paid by the Petitioners/tenants at the rate of Rs. 17,500/- per month;

(ii) The user and occupation charges from 01.01.2025 onwards, shall be paid by the Petitioners/tenants at the rate of Rs.17,500/- per month, on or before 7th day of each calendar month;

(iii) The user and occupation charges as set out in paragraphs (i) shall be cleared by the Petitioners/tenants in two equal instalments payable on 28.02.2025 and 31.03.2025.

(iv) The payment for the month of January, 2025 shall be made by the



Petitioners/tenants on or before 27.01.2025.

6. All payments shall be made into the bank account of the Respondent/landlord. The details of the bank account shall be provided by the learned Counsel for the Respondent/landlord to the learned Counsel for the Petitioners/tenants on his email address within three days.

7. It is clarified that the use and occupation charges as affixed hereinabove are subject to the final outcome of the present Petition.

8. Learned Senior Counsel appearing on behalf of the Petitioners/tenants, at this stage, submits that the ownership of the Respondent/landlord is under challenge.

9. The Respondent/landlord shall file an Undertaking by way of an appropriate Affidavit within a week stating that in the event of the Petitioners/tenants succeeding, the payments of the user and occupation charges as directed hereinabove, shall be restored to the Petitioners/tenants.

10. Subject to the payment of user and occupation charges by the Petitioners/tenants, the interim protection granted by this Court on 07.08.2024 shall continue till the next date of hearing.

11. In the event that there is any default in the payment of use and occupation charges on behalf of the Petitioners/tenants, interim protection as granted by this Court on 07.08.2024 shall automatically stand dissolved.

12. The Application is accordingly disposed of.

13. The parties will act based on the digitally signed copy of the order.

RC.REV. 180/2024, CM APPL. 37891/2024[Stay]

14. The parties shall file their respective written synopsis, not exceeding three pages each, at least one week before the next date of hearing, along



2025:DHC:445



with the compilation of judgments, if any, they wish to rely upon.

14.1 All judgments sought to be relied upon shall be filed with an index which also sets out the relevant paragraph numbers and the proposition of law that it sets forth.

15. List on 08.05.2025.

TARA VITASTA GANJU, J

JANUARY 21, 2025/g.joshi

[Click here to check corrigendum, if any](#)